

Jeevan Sahara Hospital v. State of U.P.

Allahabad High Court · Division Bench · 20 June 2017 · Writ-C No. 27562 of 2017 · **Writ disposed; petitioner left to invoke Clause 6.14 for instalments.**

HEADNOTE

After a Clause 6.5 representation against an electricity bill is rejected, a consumer who seeks only to pay the dues in instalments must invoke Clause 6.14 of the U.P. Electricity Supply Code, 2005. The High Court will not itself direct the Executive Engineer to fix instalments and will leave that statutory course open.

FACTUAL SUMMARY

Jeevan Sahara Hospital, through its director, sought a writ directing the Executive Engineer, Electricity Distribution Division First, Bhadohi, to fix instalments for outstanding electricity dues. An earlier writ (Writ-C No. 26500 of 2017) against the bill had been disposed of on 7 June 2017 with a direction to invoke Clause 6.5 of the U.P. Electricity Supply Code, 2005. The hospital's Clause 6.5 representation was rejected on 13 June 2017. Counsel then confined the present petition to a prayer that the amount due be permitted to be deposited in instalments.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalment facility for electricity dues

HOLDING

A consumer who, after rejection of a Clause 6.5 representation against the bill, seeks only to deposit electricity dues in instalments must invoke Clause 6.14 of the U.P. Electricity Supply Code, 2005; the High Court will not itself direct the Executive Engineer to fix instalments. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER IS ENTITLED TO INSTALMENTS OF THE ELECTRICITY DUES

Left to a Clause 6.14 application; the Court neither granted nor refused instalments. ¶ 1

NOT DECIDED — CORRECTNESS OF THE BILL AND OF THE 13 JUNE 2017 CLAUSE 6.5 REJECTION

The present petition was confined to instalments; the earlier Clause 6.5 rejection was not reviewed. ¶ 1